



OFFICIAL

# NMHS MHS PROCEDURE

## Consumer Declining Assessment or Follow-up

|                         |                                                                                                                                                                                                                                             |
|-------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Scope (Audience)</b> | All NMHS Mental Health Services (MHS) Staff: Clinical                                                                                                                                                                                       |
| <b>Scope (Area)</b>     | All NMHS MHS Community Areas                                                                                                                                                                                                                |
| <b>Summary</b>          | To provide Mental Health Clinicians with a process to liaise with significant others, consider risk, determine if follow-up is warranted and facilitate any agreed clinical intervention when a consumer declines assessment and follow-up. |
| <b>Risk Rating</b>      | Low                                                                                                                                                                                                                                         |
| <b>NSQHS Standards</b>  | Clinical Governance (Std 1)<br>Comprehensive Care (Std 5)<br>Communicating for Safety (Std 6)<br>Recognising and Responding to Acute Deterioration (Std 8)                                                                                  |
| <b>Policy Sponsor</b>   | Director of Adult Community MHS                                                                                                                                                                                                             |
| <b>Policy Contact</b>   | Service Manager Adult Community MHS                                                                                                                                                                                                         |
| <b>Version</b>          | 3.1                                                                                                                                                                                                                                         |
| <b>Review Date</b>      | 13/03/2029                                                                                                                                                                                                                                  |

**COMPLIANCE WITH THIS DOCUMENT IS MANDATORY**

Do you have any *feedback*? Tell us [here](#) or scan the QR code to access the Policy Document Evaluation Form. For any *queries* about this document, please email the Document Contact listed above.



## 1. Aim

To provide a process to liaise with significant others, consider risk, determine if follow-up is warranted and facilitate any agreed clinical intervention when a consumer declines assessment and follow-up.

## 2. Risk

Non-compliance with this policy will impact on the following risk categories:

|                                       |                          |                                 |                                     |
|---------------------------------------|--------------------------|---------------------------------|-------------------------------------|
| Culture                               | <input type="checkbox"/> | Organisational Development      | <input type="checkbox"/>            |
| Emergency Management                  | <input type="checkbox"/> | Policy & Legislative Compliance | <input checked="" type="checkbox"/> |
| Fiscal Responsibility                 | <input type="checkbox"/> | Quality of Patient Care         | <input checked="" type="checkbox"/> |
| Governance & Accountability           | <input type="checkbox"/> | Research & Innovation           | <input type="checkbox"/>            |
| Information Communications Technology | <input type="checkbox"/> | Staff Safety & Wellness         | <input checked="" type="checkbox"/> |
| Facility Management                   | <input type="checkbox"/> | Workforce Planning              | <input type="checkbox"/>            |
| Medical Equipment                     | <input type="checkbox"/> | Other                           | <input type="checkbox"/>            |

## 3. Procedures

Although every individual has the right to decline assessment or treatment, where a consumer referred to a NMHS MHS declines an initial Mental Health assessment or follow-up, the MHS must evaluate the possible outcome of the consumer not receiving mental health care.

The MHS, in consultation with the referrer and/or any significant other or support person, is to determine appropriate care requirements and current risks.

Such action may include:

- Seeking further information from the referral source.
- Seeking collateral information from involved persons, e.g. family/carers, case workers, General Practitioner (GP), Non-Government Organisations (NGOs), WA Police.
- Consider an alternate approach to assessing the consumer, such as home visiting.
- Engage Aboriginal Mental Health Liaison to assist with culturally appropriate engagement and support, particularly where the consumer has declined assessment or follow-up.
- Where there is significant concern about the consumer, and the MHS cannot provide immediate response, a welfare check or other appropriate action by WA Police may be requested as per [Community Mental Health Welfare Checks: Role of Mental Health Clinicians \(MP 0099/18\)](#).
- A welfare check must include a thorough mental state examination by a Mental Health Clinician either in collaboration with WA Police or as soon as is practicable.
- Consideration of criteria for completion of a Form 1A "Referral for examination by Psychiatrist" (refer s. 26, 36, 41, 42 & 43 of the [Mental Health Act \(MHA\) 2014](#)).

The MHS must notify the referrer:

- When the consumer has not been able to be contacted, or they have declined assessment and/or follow up.
- When the consumer consistently declines support of the service and the MHS determines that the offer of care will not be pursued.

Refer to **Appendix 1**: Flow Chart for the decision-making process when Consumers decline to participate in assessment or follow-up.

### 3.1 Consent

Except in circumstances of emergency psychiatric treatment, clinicians must seek valid consent from a voluntary consumer before providing psychiatric treatment in accordance with the WA Department of Health [Consent to Treatment Policy MP0175/22](#) . Consent must be given freely and voluntarily. A consumer's failure to offer resistance to treatment does not of itself constitute consent to treatment (refer Part 5 "Decision making capacity and informed consent" of the MHA 2014).

### 3.2 Communicating with Carers and Other Organisations

In accordance with the [NMHS Carers Recognition Policy](#) and the [MHS Rights of Carers and Other Support Persons Procedure](#), staff should communicate with identified carers, close family members and other personal support persons, with the consumer's consent (refer Part 9 "Notifiable events" of the MHA 2014).

When communicating with GPs and other organisations involved in the consumer's care, staff must adhere to the [NMHS MHS Release of Patient Information Policy](#).

### 3.3 Documentation

Clinicians who take actions to locate, assess and/or treat a consumer who has declined assessment or follow-up must document those actions in the clinical record and include an appropriate risk assessment of the consumer.

Refer to [NMHS MHS Did Not Attend \(DNA\) Community Appointment Procedure](#).

## 4. Monitoring and Evaluation

Regular documentation audits will be undertaken at predetermined intervals under the direction of the site/service Directors to determine compliance with procedure.

This procedure will be evaluated as required to determine its currency, relevance, effectiveness, efficiency, and sustainability. At a minimum, it will be reviewed every four (4) years using a risk management approach in accordance with the [NMHS Policy Governance Framework](#).

## 5. Related Documents

|                                  |                                                                                                                                                                                                                                         |
|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Government policies</b>       | <ul style="list-style-type: none"> <li>• <a href="#">Community Mental Health Welfare Checks: Role of Mental Health Clinicians (MP 0099/18)</a></li> <li>• <a href="#">WA Health Consent to Treatment Policy (OD 0657/16)</a></li> </ul> |
| <b>NMHS MHS Policy documents</b> | <ul style="list-style-type: none"> <li>• <a href="#">MHS Release of Patient Information Policy</a></li> <li>• <a href="#">MHS Did Not Attend (DNA) Community Appointment Procedure</a></li> </ul>                                       |

## 6. Document Control

| Document Version Control |         |                                     |                                                                                                                                                                                                                                                                                               |
|--------------------------|---------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Date                     | Version | Author                              | Notes                                                                                                                                                                                                                                                                                         |
| 22/01/2019               | 2.0     | Program Manager, Joondalup MCHS     | Scheduled Review – Minor Amendments: Minor changes to content to improve readability. Removal of reference to EQUIP National; removal of rescinded OD's and replaced with current OD's; removal of reference to NMHS MH Form 1 Management Policy. Updated template, hyperlinks and references |
| 27/09/2022               | 3.0     | Program Manager, Joondalup MHS      | Scheduled review, minimal content change, update of Consumer Declining to Participate in Assessment/Flowchart of Decision-Making Process, template and hyperlinks.                                                                                                                            |
| 13/03/2026               | 3.1     | Service Manager Adult Community MHS | Scheduled review, template update, hyperlink refresh, no content change.                                                                                                                                                                                                                      |

This document can be made available in alternative formats on request for a person with a disability.

Within the Department of Health WA, the term Aboriginal is used in preference to Aboriginal and Torres Strait Islander, in recognition that Aboriginal people are the original inhabitants of Western Australia. No disrespect is intended to our Torres Strait Islander colleagues and community.

© North Metropolitan Health Service 2025

Copyright to this material is vested in the State of Western Australia unless otherwise indicated. Apart from any fair dealing for the purposes of private study, research, criticism, or review, as permitted under the provisions of the *Copyright Act 1968*, no part may be reproduced or re-used for any purposes whatsoever without written permission of the State of Western Australia.

## Appendix 1: Decision Making Process for Consumers Declining to Participate in Assessment or Follow-up

### CONSUMERS DECLINING TO PARTICIPATE IN ASSESSMENT OR FOLLOW-UP FLOWCHART OF DECISION MAKING PROCESS

